Roshan Lal & Ors vs The State (Govt Of Nct Delhi) & Anr on 11 May, 2016

Author: Siddharth Mridul

Bench: Siddharth Mridul

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

Date of Decision: 11th May, 2016

\+ W.P.(CRL) 1274/2016 and Crl. MA No. 6683/2016

ROSHAN LAL & ORS ..... Petitioners
Through Ms. Raj Kumari and Ms. Prabha Sharma, Advs. along with petitioners

versus

THE STATE (GOVT OF NCT DELHI) & ANR ..... Respondents
Through Ms. Kamna Vohra, ASC (Crl.)
SI Ram Singh, PS Ambedkar Nagar
Respondent no. 2/Complainant (wife) in-person

CORAM:
HON'BLE MR. JUSTICE SIDDHARTH MRIDUL

SIDDHARTH MRIDUL, J. (ORAL)

CRL.M.A. No. 6683/2016 (Exemption)

1. Exemptions allowed subject to all just exceptions.

2. The application is disposed of accordingly.

W.P.(CRL) 1274/2016

1. The present is a petition under Article 226 of the Constitution of India read with Section 482 of the Code of Criminal Procedure, 1973 seeking quashing of FIR No. 142/2014 under Sections 406/498A/34 IPC registered at Police Station- Ambedkar Nagar, Delhi and the proceedings arising therefrom.

2. The facts in brief are that the petitioner No.1 (husband) and respondent No.2/complainant (wife) were married to each other according to Hindu rites and ceremonies on 11th March, 2012. No child has been born out of the said wedlock. Owing to temperamental and ideological differences between the parties to the marriage, they started living separately since 5th September, 2013. On a complaint

instituted by respondent no.2 (wife), the subject FIR was registered against the petitioner no. 1 (husband) and his family members.

3. Counsel appearing on behalf of the petitioners states that with the intervention of family members and relatives of the parties, the outstanding matrimonial dispute between the parties to the union has been settled amicably by way of a Compromise Deed dated 30th May, 2015. The factum of the said settlement between the parties to the union is encapsulated in the order dated 30th May, 2015 passed by the learned Additional Sessions Judge in Bail Application No. 1386/2015 wherein it has been recorded that since the parties have resolved their dispute, therefore, the complainant (wife) has no objection to the grant of anticipatory bail in favour of the applicant (husband). The salient terms and conditions of the settlement as contained in the said Compromise Deed dated 30th May, 2015 are encapsulated as follows:-

> "This Compromise Deed, is signed on this 30 th day of May, 2015 between Smt. Jyoti D/o Ram Sahay, W/o Sh. Roshan Lal, R/o A-259, Dakshin Puri, New Delhi (Complainant) hereinafter called first party AND Sh. Roshan Lal, S/o Late Shri Babu Lal R/o D-1/143, Madan Gir, New Delhi hereinafter called the second party WHEREAS both the parties hereinafter referred to as "First Party" and "Second Party" in the Compromise Deed duly signed by the said parties.
>
> WHEREAS the first party and second party have been married together on 11/03/2012 according to Hindu rites and customs and from the said wedlock no issue was born. WHEREAS after the marriage due to temperamental differences some disputes and differences arose between the parties and they could not adjust with each other. Whereas the first party is complainant in the FIR No. 142/2015 under Sections 498A/406/34 IPC PS Ambedkar Nagar was registered against Sh. Roshan Lal, Smt. Kamla Devi (mother in law), Rajani (sister in law), Pinky (sister in law) and Kavita.

Whereas both the parties are desirous and come to a settlement their entire dispute and differences by way of present deed in the following terms:-

> 1. That the second party along with his relatives agree to pay Rs. 1,00,000/- (One Lac Rupees) to the first party as full and final settlement for her present, past and future permanent alimony along with all her gifts dowry articles etc.
>
> 2. That both the parties agreed to give up their claim- counter claims against each other.
>
> 3. That the both the parties agreed to file a petition for mutual consent divorce before concerned court for getting divorce to dissolve the marriage between the parties.
>
> 4. That it is agreed between the parties that Rs. 50,000/-

(Rupees Fifty Thousand only) would be given to the first party on 30th May, 2015, in the court of Sh. Manoj Kumar, ASJ, Saket District Court, New Delhi and the balance amount of Rs. 50,000/- would be given to the first party at the time of making of statement of second motion.

5. That the first party undertakes to withdraw the CC No. 349/1 titled as Jyoti vs. Roshan Lal & Ors. under Section 12 of Domestic Violence Act, same is pending in the court of Ms. Pooja Gupta, MM, Saket Court on 08.07.2014.

6. That both the parties were agreed that after getting the divorce both will not interfere in their respective lives and they also agreed not to claim/counter claims whatsoever in future.

7. That both the parties of the present deed of settlement agreed that one set each of the present Memorandum of Understanding or attested copy thereof shall be placed before every court of law and authority where the above said litigation, proceedings, applications, petitions, suit etc. are pending and would gave their statements accordingly within the same spirit as they have enumerated in the present deed of settlement.

8. That the present deed of settlement have been prepared with the volunteered consent of all the parties of the present deed and their respective consent of all the parties have not been obtained by fraud, undue influence, coercion, pressure, force etc.

9. That all the parties shall obey the terms and conditions of the present deed of settlement."

4. In a nutshell, it is agreed by and between the parties to the union that respondent no. 2 (wife) shall be paid a total sum of Rs. 1 lakh towards all her claims against the petitioners.

5. Counsel for the petitioners further states that pursuant to the said settlement between the parties to the union, the entire sum of Rs. 1 lakh has been received by respondent no.2 (wife). The latter acknowledges receipt thereof.

6. In the present case, it is observed that pursuant to the settlement arrived at between the parties to the union, a decree of divorce by mutual consent dated 5th March, 2016 has already been obtained by the parties from the concerned Family Court, South Distt., Saket Courts, New Delhi.

7. Ms. Jyoti, respondent No.2/complainant (wife), who is present in Court and has been duly identified by the Investigating Officer in the subject FIR namely SI Ram Singh, Police Station-Ambedkar Nagar, Delhi, states that in pursuance to the settlement arrived at between the parties to the union, she is no longer keen to proceed with the subject FIR and the proceedings emanating therefrom.

8. It is also observed that as a consequence of the settlement arrived at between the parties to the marriage, the proceedings in a complaint case being CC No. 349/1 filed by respondent no.2/complainant (wife) under Section 12 of the DV Act, 2005 against the petitioners has also been withdrawn by the respondent no. 2/complainant (wife).

9. Since the dispute between the parties which arose out of a matrimonial discord between petitioner no. 1 and respondent no. 2 and resulted in the registration of the subject FIR, has been settled amicably between the parties without any undue influence, pressure or coercion; as the parties have obtained decree of divorce by mutual consent; and since the settlement between the parties is lawful, no useful purpose will be served by proceeding with the subject FIR and the proceedings arising therefrom.

10. Resultantly, the FIR No. 142/2014 under Sections 406/498A/34 IPC registered at Police Station- Ambedkar Nagar, Delhi and the proceedings arising therefrom are hereby set aside and quashed qua all the petitioners subject to their depositing a sum of Rs. 15,000/- (in aggregate) with the Victims' Compensation Fund within a period of four weeks from today. A copy of the receipt thereof be provided to the Investigating Officer in the subject FIR.

11. With the above directions, the writ petition is allowed and disposed of accordingly.

SIDDHARTH MRIDUL, J MAY 11, 2016 SD